IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

ITEM NO. 301
C.P.(CAA) No.16 of 2023
In
C.A.(CAA) No. 71/NCLT/AHM/2022

Order under section 230-232 of Companies Act, 2013

IN THE MATTER OF :
Amoli Organics Pvt. Ltd.
Umedica Laboratories Pvt. Ltd. ….Applicant

Order delivered on: 31.08.2023

Coram:
Mr. Shammi Khan, Hon'ble Member (J)
Mr. Sameer Kakar, Hon'ble Member (T)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of order. The order is pronounced in the open court, vide separate sheet.

-Sd-
SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-
SHAMMI KHAN
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
DIVISION BENCH
COURT-1

CP(CAA) NO. 16 OF 2023 IN
CA(CAA)NO. 71/NCLT/AHM/2022

[Application under section 230-232 of Companies Act, 2013 read with the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016]

In the matter of Scheme of Amalgamation

Between

Amoli Organics Private Limited

(Transferor Company)

And

Umedica Laboratories Private Limited

(Transferee Company)

And

Their respective Shareholders and Creditors

In the matter of:

Amoli Organics Private Limited,
A Company incorporated under the
provisions of the Companies Act, 1956 and
having its registered office at
322/4, 40 Shed Area, GIDC,
Vapi-396195, Gujarat
(CIN: 24231GJ1991PTC016288) ...Transferor Company

Umedica Laboratories Private Limited,
A Company incorporated under the
provisions of the Companies Act, 1956 and
having its registered office at
Plot No. 222/1, 2nd Phase,

GIDC Area, Vapi-396191
(CIN: U24231MH1982PTC224236) … Transferee Company

Order Pronounced on: 31.08.2023

Coram: Shammi Khan, Hon'ble, Member (J)
Sameer Kakar, Hon'ble Member (T)

APPEARANCE:

Ms. Dharmishta Raval, Advocate for Petitioner Companies

O R D E R

1. The present joint petition has been filed by Petitioner Companies under Sections 230-232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 seeking sanction of the Scheme of Amalgamation between Amoli Organics Private Limited (Transferor Company) and Umedica Laboratories Private Limited (Transferee Company) and their respective shareholders and creditors with effect from 1st April, 2022, being the Appointed Date as mentioned in the scheme.

2. An Affidavit has been sworn by Mr. Manish Doshi on behalf of the Petitioner Companies who is the authorized signatory of the Petitioner Companies authorised by Board Resolution dated 22.11.2022.

3. The Petitioner Companies had filed a Joint Application before this Tribunal being CA (CAA) No. 71 of 2022 seeking dispensation of meetings of Equity Shareholders of Transferor Company and Equity shareholders and Preference Shareholder of Transferee Company. Further directions were sought for convening meeting of Secured Creditors and Unsecured Creditors of Transferor and Transferee Company.

4. By an order dated 24.01.2023 passed in CA(CAA) No. 71 of 2022, this Tribunal dispensed with the meetings of Equity Shareholders of Transferor Company and Equity Shareholders and Preference Shareholders of Transferee Company. Further directions were given to convene the meeting of Secured Creditors and Unsecured Creditors of Transferor Company and Transferee Company on 03.03.2023, for the purpose of considering and if thought fit, approving, with or without modification(s) the proposed Scheme of Amalgamation, by publishing advertisement of meeting at least one month before the date of meeting in "Times of India" English Daily (English Edition) and Gujarati Translation thereof in "Daman Ganga Time" (Gujarati Edition) and also to send notice of meeting to each Secured Creditor and Unsecured Creditor of the Petitioner Companies at their respective registered or last known addresses either by Registered Post or Speed Post/ Airmail or E-mail or by Courier or by Hand Delivery.

5. This Tribunal appointed Mr. Mehul Rajput, Advocate and in his absence Mr. Ankit Singhal, Practicing Chartered Accountant to act as Chairman/Chairperson and Mr. Gaurang Shah, Practising Company Secretary and in his absence Mr. Anmol Shanwlesha to act as Scrutinizer of the aforesaid meeting and gave further directions to comply with various stipulations contained in order including Filing of the Chairman's Report. Further, to ensure compliance of sub-section (5) of Section 230 and Rule 8 of the Companies (CAA) Rules, 2016, directions were given to the Petitioner Companies to send notice of meeting under sub-section(3) of Section 230 read with Rule 6 of the Companies (CAA) Rules, 2016 in Form No. CAA.3 along with a copy of the Scheme of Amalgamation, explanatory statement and the disclosure mentioned under Rule 6 to (i) the Central Government through the Regional Director, North Western Region (ii) the Registrar of Companies, Gujarat (iii) Official Liquidator (in respect of the Transferor Company) and (iv) Concerned Income Tax Authority,

stating that the representations, if any, to be made by them shall be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that they have no objection to make on the proposed Scheme of Amalgamation.

6. In compliance of the order dated 24.01.2023, the Petitioner Companies published the notice of meeting of Secured Creditors and Unsecured Creditors in prescribed newspapers and also sent individual notice of meeting to all its Secured Creditors and Unsecured Creditors. The affidavit of service dated 20.02.2023 is placed on record.

7. The Petitioner Companies have also served the notice upon Central Government through the office of Regional Director, North Western Region, the Registrar of Companies, Gujarat, Official Liquidator (in respect of the Transferor Company) and Concerned Income Tax Authority. The affidavit of service dated 06.03.2023 is placed on record.

8. The meeting of Secured Creditors and Unsecured Creditors of the Petitioner Companies was duly convened on 03.03.2023. The Chairman of the meeting has filed the respective report on 10.03.2023.

9. The Chairman filed an affidavit dated 09.03.2023 containing Chairman's Report and Scrutinizer's Report with respect to Transferor Company. The Chairman have submitted the result of meeting in Form CAA 4, wherein 5 Secured Creditors of Transferor Company entitled together to a total outstanding debt of Rs.2,12,98,19,626/- representing 100% of the total outstanding of Rs.2,12,98,19,626/- as on October 31,2022 and constituting 100% in the value of the persons present and voting and 28 Unsecured Creditors of Transferor

Company entitled together to a total outstanding debt of Rs.13,78,51,176/- representing 14.22% of the total outstanding of Rs.96,88,63,927/- as on October 31,2022 and constituting 100% in the value of the persons present and voting, have voted in favour of the Scheme. The Scrutinizer-Mr.Gaurang Shah (PCS) in its report has stated that 5 Secured Creditors and 28 Unsecured Creditors of Transferor Company voted in favour of the proposed Scheme.

10. The Chairman has also filed an affidavit dated 09.03.2023 containing Chairman's Report and Scrutinizer's Report with respect to Transferee Company. The Chairman have submitted the result of meeting in Form CAA 4, wherein 3 Secured Creditors of Transferee Company entitled together to a total outstanding debt of Rs.1,07,63,24,499/- representing 100% of the total outstanding of Rs. 1,07,63,24,499/- as on October 31,2022 and constituting 100% in the value of the persons present and voting and 26 Unsecured Creditors of Transferee Company entitled together to a total outstanding debt of Rs.32,25,47,178/- representing 37.36% of the total outstanding of Rs.86,32,64,962/- as on October 31,2022 and constituting 100% in the value of the persons present and voting, have voted in favour of the Scheme. The Scrutinizer-Mr.Gaurang Shah (PCS) in its report has stated that 3 Secured Creditors and 26 Unsecured Creditors of Transferee Company voted in favour of the proposed Scheme.

11. The Petitioner Companies have filed the present Company Petition being CP(CAA) No. 16 of 2023 before this Tribunal on 15.03.2023 seeking sanction of the scheme.

12. This Tribunal by order dated 27.03.2023, admitted the petition and directed for publication of hearing of the Petition in "Times of India" in English and Gujarati translation thereof in "Daman Ganga Times" both in Gujarat edition not less than ten days before the date fixed for hearing, calling for objections, if any, on or before the date of hearing. This Tribunal also directed to issue a notice of hearing of the petition

to Central Government through the Regional Director, North Western Region, the Registrar of Companies, Gujarat, the Official Liquidator and Income Tax Authority.

13. Pursuant to order dated 27.03.2023 passed by this tribunal, the Petitioner Company have published the notice of hearing of Company Petition in English newspaper namely, "Times of India" and in Vernacular newspaper namely, "Daman Ganga Times" both in Gujarat edition on 05.04.2023. The affidavit of service, on behalf of the Petitioner Companies, dated 17.04.2023 has been filed on 22.04.2023 confirming the publication of the notice in the newspapers as directed and also the notice of hearing of the petition has been served upon all the concerned statutory authorities.

14. In response to the notice served upon the Regional Director (RD), a Representation was submitted by the RD, North Western Region, MCA dated 13.04.2023 filed on 26.04.2023 along with the report from Registrar of Companies (ROC). Their observations are as follows:

i. To direct the Petitioner Companies to undertake compliance of Section 232(3) of the Companies Act, 2013 and pay fees accordingly.

ii. To direct the Petitioner Companies to comply and undertake to make all entries in the books of the Transferee Company according to Pooling of interest method with compliance of the Accounting Standard-14.

iii. In view of Foreign National/NRI/Foreign Body Corporate holding shares in the Transferor Company directions be given to Petitioner Companies to ensure the compliance of FEMA and RBI guidelines.

iv. The registered office of the Transferee Company is shifted from the state of Maharashtra to the state of Gujarat for which e-form INC-22 has been filed with ROC however, such e-form is reflecting status as 'Required Resubmission' after migration

from MCA21-V2 to V3. Therefore, directions be issued to clarify and place on record relevant facts of the matter.

v. To direct the Petitioner Companies to pay legal fees/cost to the Central Government which may be considered appropriate by this Hon'ble NCLT.

vi. To preserve books of accounts, papers and records and shall not be disposed of without prior permission of Central Government as per the provisions of Section 239 of the Companies Act, 2013.

vii. To direct the Petitioner Companies to ensure statutory compliance of all applicable laws.

viii. Stamp Duty on transfer of property to be paid to the respective authorities before implementation of the Scheme.

ix. To direct Petitioner Companies to comply with the provisions of section 232(5) of the Companies Act, 2013 and file certified copy of order sanctioning the scheme with Registrar of Companies within 30 days from the date of passing order.

x. The Regional Director has no other observation/submissions except stated hereinabove, for consideration of the Hon'ble NCLT in respect of the Scheme.

15. In response to the notice served upon the Official Liquidator, a Representation is submitted by the Official Liquidator dated 15.05.2023 filed on 19.05.2023. Their observations are as follows:

i. To preserve books of accounts, papers and records and shall not be disposed of without prior permission of Central Government as per the provisions of Section 239 of the Companies Act, 2013.

ii. To direct the Petitioner Companies to ensure statutory compliance of all applicable laws and on sanctioning of the present scheme, the Transferor Company shall not be absolved from any of its statutory liabilities.

iii. To direct the Transferee Company to pay such cost and expenses to the office of official liquidator for the Transferor Company or any other amount as may be considered appropriate.

iv. To direct the Petitioner Companies to lodge copy of order along with scheme, with the concerned Superintendent of Stamps for the purpose of adjudication of stamp duty payable, if any.

v. To direct Petitioner Companies to comply with the provisions of section 232(5) of the Companies Act, 2013 and file certified copy of order sanctioning the scheme with Registrar of Companies within 30 days from the date of passing order.

16. In response to the notice served upon Income Tax Department, the Income Tax Department filed its report dated 17.04.2023 with respect to Transferor Company and report dated 02.05.2023 with respect to Transferee Company, wherein the department has stated that an amount Rs.4,39,86,315/- and Rs. 8,84,66,075/- is outstanding from Transferor Company and Transferee Company respectively.

17. The Petitioner Companies have filed affidavit in reply dated 29.05.2023 in response to observations made by Regional Director, ROC, Official Liquidator and Income Tax as under:-

Response to observation of Regional Director and Registrar of Companies:

i. The Transferee Company undertakes to comply with the provisions of Section 232(3)(i) of the Companies Act,2013 and to pay the fees as are due and payable.

ii. The Transferee Company undertakes to make the entries in the books of the Transferee Company in accordance with the Accounting Standards as notified under section 133 of the Companies Act, 2013 and other normally accepted accounting principles.

iii. The Petitioner Companies undertake to comply with the provisions of the FEMA and RBI guidelines.

iv. The Transferee Company has enclosed the Certificate of Change of Registered Office from the State of Maharashtra to the State of Gujarat at Annexure-C to the Petition. The Petitioner Transferee Company has also resubmitted e-form INC-22 regarding shifting of registered office. The said form INC-22 has been approved by the MCA and the records have been updated for the shifting of the registered office.

v. The Petitioner Companies undertakes to pay such amount of legal fees as may be directed by this Tribunal.

vi. The Petitioner Companies undertake to pay applicable stamp duty.

vii. The Petitioner Companies undertakes to preserve the books of accounts, papers and records and shall not dispose of the same without the prior permission of the Central Government as per the provisions of section 239 of the Companies Act, 2013.

viii. The Petitioner Companies undertakes to comply with all applicable laws on the sanction of the scheme and shall not be absolved from any of its statutory liabilities in any manner.

ix. The Petitioner Companies undertake to comply with the provisions of Section 232(f) of the Companies Act and file certified copy of order sanctioning the Scheme of Registrar of Companies within 30 days of the passing of the order by this Hon'ble Tribunal.

Response to observation of Official Liquidator:

i. The Petitioner Companies undertakes to preserve the books of accounts, papers and records and shall not dispose of the same without the prior permission of the Central Government as per the provisions of section 239 of the Companies Act, 2013.

ii. The Petitioner Companies states that they will comply with the statutory compliance of all applicable laws and also on sanctioning of the present Scheme, the Transferor Company shall not be absolved from any of its Statutory liabilities, in any manner.

iii. The Petitioner Companies will pay such cost and expenses to the office of official liquidator as may be considered appropriate by this Hon'ble Bench.

iv. The Petitioner Companies will lodge a certified copy of order along with the scheme, with the concerned Superintendent of Stamps for the purpose of adjudication of stamp duty payable, if any.

v. The Petitioner Companies will comply with provision of Section 232(5) of Companies Act, 2013 and file certified copy of order sanctioning the scheme with Registrar of Companies within 30 days from date of passing order.

Response to observation of Income Tax Department:

i. All the legal dues and obligations of the Transferor Company shall become the liabilities and obligations of the Transferee Company. The Petitioner Companies undertake to the income tax dues in accordance with law and the Petitioner Companies will not be absolved of any of its liabilities on account of the Scheme of Amalgamation being sanctioned by this Hon'ble Tribunal.

18. Considering the above reply filed by the Petitioner Companies dated 29.05.2023, the observations made by the Regional Director, ROC, Official Liquidator and Income Tax Department in its representation stands satisfied.

19. The Petitioner Companies have filed audited financial statements as on 31.03.2022 and provisional standalone financial statements as on 30.06.2022, which are annexed with the Company Petition. The Schedule of Assets of the Transferor Company is placed on record.

20. The Petitioner Companies have obtained valuation report for the purpose of determining the share exchange ratio. The copy of valuation report is placed on record.

21. It is submitted that the Statutory Auditor of the Petitioner Companies has certified that the Accounting Treatment of the Scheme is in conformity with the Accounting Standards prescribed under section 133 of the Companies Act, 2013. A copy of the certificate issued by the statutory auditor was filed under diary no. D6473 dated 19.12.2022.

22. It is submitted that no winding up proceedings have been filed or are pending against the Petitioner Companies under the Companies Act, 2013 or under the corresponding provisions of the Companies Act, 1956 or any Insolvency proceedings under the provisions of Insolvency and Bankruptcy Code, 2016.

23. The Petitioner Companies has stated in the Petition that no investigation or proceedings under section 210 to 226 of Companies Act, 2013 as well as Sections 235 to 251 of the Companies Act,1956 or the like are pending against the petitioner companies.

24. We have heard the Ld. Counsel for the Petitioner Company and also gone through the records.

25. On the basis of the above facts and submissions made by the Ld. Counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the

proceedings, it appears that the requirements of the provisions of section 230 and 232 are satisfied by the Petitioner Companies. We are of the considered view that the proposed Scheme of Amalgamation is bonafide and in the interest of the shareholders and creditors. In the result, Company Petition No. CP(CAA) No. 16 of 2023 is allowed. The scheme envisages amalgamation of Amoli Orgaics Private Limited (Transferor Company) and Umedica Laboratories Pvt. Ltd. (Transferee Company) and their respective shareholders and creditors. It is declared that the said sanctioned scheme shall be binding on the Petitioner Companies and their shareholders, creditors and all concerned under the scheme.

26. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioners.

27. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST, etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of Amalgamation given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

28. In **Company Petition CAA-284/ND/2018** vide Order dated 12.11.2018, the NCLT New Delhi has made the following observations

with regard to the right of the IT Department in the Scheme of Amalgamation,

"taking into consideration the clauses contained in the Scheme in relation to liability to tax and also as insisted upon by the Income Tax and in terms of the decision in RE: Vodafone Essar Gujarat Limited v. Department of Income Tax (2013)353 ITR 222 (Guj) and the same being also affirmed by the Hon'ble Supreme Court and as reported in (2016) 66 taxmann.com.374(SC) from which it is seen that at the time of declining the SLPs filed by the revenue, however stating to the following effect vide its order dated April 15,2015 that the Department is entitled to take out appropriate proceedings for recovery of any statutory dues from the transferor or transferee or any other person who is liable for payment of such tax dues, the said protection be afforded is granted. With the above observations, the petition stands allowed and the scheme of amalgamation is sanctioned."

29. The Scheme is allowed with the following directions:-

i. The Scheme of Amalgamation as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the scheme;

ii. The Transferor Company shall be dissolved without winding up.

iii. The Transferor Company shall, together with all its properties, rights and powers be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, stand transferred to and vest in the Transferee Company for all the estate and interest of the Transferor Company. The schedule of property of the

Transferor Company is annexed with this Order at **"Annexure-B"**.

iv. All licenses, permissions, permits, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, special status, other benefits or privileges and any power of attorney relating to the Transferor Company shall stand transferred to and vested in the Transferee Company, without any further act or deed. The Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Transferee Company.

v. All the liabilities and duties of the Transferor Company be transferred, without further act or deed, to the Transferee Company and accordingly the same shall pursuant to Sections 230 & 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company.

vi. All contracts, agreements, insurance policies, bonds and all other instruments of whatsoever nature or description, of the Transferor Company, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favour of the Transferee Company and may be enforced by or against it as fully and effectually against the Transferee Company.

vii. All taxes paid or payable by the Transferor Company including existing and future incentives, un-availed credits and exemptions, the benefit of carried forward losses and other statutory benefits, which shall be available to and vest in the Transferee Company. The Tax liability of the Transferor Company shall become a liability of the Transferee Company

and any proceedings against the Transferor Company shall continue against the Transferee Company.

viii. All proceedings now pending by or against the Transferor Company shall be continued by or against the Transferee Company.

ix. In consideration of the Transfer of and vesting of the undertaking of the Transferor Company in the Transferee Company in terms of the Scheme, the Transferee Company shall, subject to the provisions of the Scheme and without any further applications, act, or deed, issue and allot shares as per (i) or (ii) mentioned hereunder, at the option of the members of the Transferor Company:

(i) 4862(Four Thousand Eight Hundred and Sixty Two) Equity Shares of INR 100/- (Rupees Hundred Only), credited as fully paid up in the capital of the Transferee Company, to the members of the Transferor Company, whose name appear in the register of members of the Transferor Company on the Record Date to be fixed by the Board of Directors of the Transferee Company for every 100,000 (One Lakh) Equity Shares of the face value of INR 10/- (Rupees Ten Only) each fully paid-up or credited as paid-up and held by the said members or their heirs, executors, administrators or their legal representatives as the case may be, in the Transferor Company.

(ii) 4048 (Four thousand Forty Eight) Equity Shares of INR 100/- (Rupees Hundred only) and 826 (Eight Hundred Twenty Six) Optionally Convertible Redeemable Preference Shares (OCRPS) of INR 100/- (Rupees Hundred only), credited as fully paid-up in the capital of the Transferee Company, to the members of the Transferor Company,

whose names appear in the register of members of the Transferor Company on the Record Date to be fixed by Board of Directors of the Transferee Company for every 100,000 (One Lakh) Equity Shares of the face value of INR 10/- (Rupees Ten Only) each fully paid-up or credited as paid-up and held by the said members or their heirs, executors, administrators or their legal representatives as the case may be, in the Transferor Company.

The shareholders of the Transferor Company shall be required to exercise their option in writing to receive shares as per (i) or (ii) mentioned above.

x. All employees in the service of the Transferor Company shall be deemed to have become the employees of the Transferee Company on a date on which the scheme finally takes effect on the basis that their services shall be deemed to have been continuous and not have been interrupted by reasons of the said transfer and on term and conditions no less favourable than those on which they were/are engaged, as on the Effective Date.

xi. The Petitioner Companies within thirty days of the date of the receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire Undertaking of the Transferor Company shall stand transferred to the Transferee Company and the Registrar of Companies shall place all documents relating to the Petitioner Companies to the file kept by him in relation to the Transferee Company and the files relating to the said two companies shall be treated accordingly;

xii. All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately;

xiii. The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the Transferor Company attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for adjudication of stamp duty, and pay requisite stamp duty payable, if any, within 60 days from the date of this Order.

xiv. The Petitioner Companies are further directed to file a copy of this order along with copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to a physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xv. The legal fees and expenses for the office of the Regional Director are quantified at Rs. 10,000/-. The said fees to the Regional Director shall be paid by the Transferee Company.

xvi. The legal fees and expenses for the office of the Official Liquidator are quantified at Rs. 10,000/-. The said fees to the Official Liquidator shall be paid by the Transferee Company.

xvii. The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Department

shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Arrangement under Sections 230-232 of the Income Tax Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

xviii. Any person aggrieved shall be at liberty to apply to this Tribunal for any directions that may be necessary.

30. The Company Petition CP(CAA) No. 16 of 2023 connected with CA(CAA) No. 71 of 2022 is disposed of.

-Sd-

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-

SHAMMI KHAN
MEMBER (JUDICIAL)

Arati Suryavanshi-LRA

Annexure "A"

Annexure G1.

184

SCHEME OF AMALGAMATION
OF
AMOLI ORGANICS PRIVATE LIMITED
(TRANSFEROR COMPANY)
WITH
UMEDICA LABORATORIES PRIVATE LIMITED
(TRANSFEREE COMPANY)
AND
THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS
UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS OF THE
COMPANIES ACT, 2013

For UMEDICA LABORATORIES PVT. LTD.

Authorised Signatory

For AMOLI ORGANICS PVT. LTD.

Authorised Signatory

1. **PREAMBLE**

This Scheme of Amalgamation is presented under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 & the Rules framed thereunder including any statutory modifications or re-enactments thereof, if any, for the amalgamation of Amoli Organics Private Limited as "the Transferor Company" with Umedica Laboratories Private Limited defined as "the Transferee Company" and in compliance with the conditions relating to "Amalgamation" as specified u/s 2(1B) of the Income Tax Act, 1961.

The Transferor Company was incorporated on September 19, 1991 as a Private Limited Company under the Companies Act, 1956 under the name and style of "Amoli Organics Private Limited". The Transferor Company is engaged in the business of manufacturing of APIs. The registered office of the Transferor Company is situated at 322/4, 40 Shed Area, GIDC, Vapi - 396195, Gujarat. The shares of the Transferor Company are not listed on any stock exchange.

The Transferee Company was incorporated on January 5, 1982 as a Private Limited Company under the Companies Act, 1956 under the name and style of "Umedica Laboratories Private Limited". The Transferee Company is engaged in the business of manufacturing of pharmaceutical formulations. The registered office of the Transferee Company is situated at Plot No. 222/1, 2nd Phase, GIDC Area, Vapi 396191. The shares of the Transferee Company are not listed on any stock exchange.

2. **RATIONALE OF THE SCHEME**

(a) The Transferor Company and the Transferee Company are part of the same group and are owned, controlled and managed by same set of Promoters.

(b) The Transferor Company and the Transferee Company intend to combine their business operations by way of amalgamation of the Transferor Company into the Transferee Company. Since both the companies are engaged in similar business, the combined entity will have greater efficiency in overall business including economies of scale, cash flow management of the combined entity and unfettered access to cash flow generated by the combined business which can be deployed more efficiently for the purpose of development of businesses of the companies and their growth opportunities, eliminate inter corporate dependencies, minimize the administrative compliances, etc. resulting in cost savings and maximisation of shareholders value.

(c) The combined entity will have the benefit of the combined resources of the Transferor Company and the Transferee Company i.e., market share, scale, efficiency, combined net-worth, combined employee base, reserves, investments, and other assets, manpower,

FOR UMEDICA LABORATORIES PVT. LTD. AUTHORISED SIGNATORY

For UMEDICA LABORATORIES PVT. LTD.
Authorised Signatory

For AMOLI ORGANICS PVT. LTD.
Authorised Signatory

For AMOLI ORGANICS PVT. LTD.
Authorised Signatory

consolidated pool of finances, including optimization of borrowing costs and administrative compliances related thereto, larger size, consolidation of operations, mitigating competition, future opportunities, etc. The combined entity would be in a position to carry on consolidated operations through optimum utilization of its resources and integrated production facilities.

(d) The combined entity would also have a larger net-worth base and greater borrowing capacity which would provide it a competitive edge over others which will be beneficial to the Transferor Company and the Transferee Company and their shareholders, as the Transferor Company and the Transferee Company plan to meet the competition in a more effective way by combining their asset base and operations.

(e) The Board of Directors of the Transferor Company and the Transferee Company are of the opinion that the amalgamation would motivate employees by providing better opportunities to scale up their performance with a corporate entity having large revenue base, resources, asset base etc. which will provide impetus to corporate performance thereby enhancing overall shareholder value.

(f) With the aforesaid objectives, it is proposed to amalgamate the Transferor Company with the Transferee Company.

3. PURPOSE OF THE SCHEME

(a) It is proposed that the Transferor Company be merged on a going concern basis, pursuant to a Scheme of Amalgamation under Sections 230 to 232 of the Companies Act, 2013 and such other applicable provisions as may be applicable from time to time, and be merged with the Transferee Company for achieving joint focus and benefits in the areas as brought out in Clause 2 above.

(b) With the aforesaid objective and to give effect to the terms of this Scheme of Amalgamation, the Transferor Company and the Transferee Company will combine the activities and operations into a single company i.e., the Transferee Company for synergistic linkages besides the benefit of financial and other resources of each other as stated in Clause 2 above.

(c) This Scheme has been drawn up to comply with the conditions relating to "Amalgamation" as specified under Section 2(1B) of the Income Tax Act, 1961. If any terms or provisions of the Scheme is/ are found or interpreted to be inconsistent with the provisions of Section 2(1B) of the Income Tax Act, 1961 at a later date including resulting from an amendment of law or for any other reason whatsoever, the provisions of Section 2(1B) of the Income Tax Act, 1961 shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with the provisions of Section 2(1B) of the Income Tax Act, 1961.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

FOR UMEDICA LABORATORIES PVT. LTD. AUTHORISED SIGNATORY

UMEDICA LABORATORIES PVT. LTD.

For UMEDICA LABORATORIES PVT. LTD.
Authorised Signatory

For AMOLI ORGANICS PVT. LTD.
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4. DEFINITIONS

In this Scheme, unless inconsistent with the subject or context, the following expressions shall have the following meanings: -

(a) **"Act"** means the Companies Act, 2013 and the applicable provisions of the Companies Act, 2013 and the Rules framed thereunder in force from time to time.

(b) **"Appointed Date"** means 1st April, 2022 or such other date as may be fixed or approved by the regulatory authority or other Government Authority, if applicable.

(c) **"Effective Date"** means the last date on which the certified copies of the Order passed by the Ahmedabad Bench of NCLT sanctioning this Scheme (defined hereinafter) is filed with the Registrar of Companies by the Transferor Company and the Transferee Company, as required under the provisions of the Act. Any references in this Scheme to the "date of coming into effect of this Scheme" or "effectiveness of the Scheme" or "Scheme taking effect" or "Scheme coming into effect" shall mean the Effective Date.

(d) **"Governmental Authority"** means any concerned Central, State or local Government, statutory, regulatory, departmental or public body or authority of relevant jurisdiction, legislative body or administrative authority, agency or commission or any court, tribunal, board, bureau or instrumentality thereof including Registrar of Companies, Regional Director, or arbitration or arbitral body having jurisdiction, Courts and other government and regulatory authorities of India.

(f) **"NCLT"** means National Company Law Tribunal, and shall for the purpose of this Scheme mean the National Company Law Tribunal, Ahmedabad Bench, having jurisdiction in relation to the Transferee Company and the Transferor Company and shall be deemed to include, if applicable, a reference to such other forum or authority which may be vested with any of the powers of NCLT to sanction the Scheme under the Act.

(g) **"Record Date"** is any date after the Effective Date to be fixed by the Board of Directors of the Transferee Company for issuing the shares of Transferee Company to the shareholders of the Transferor Company.

(h) **"Scheme" or "Scheme of Amalgamation"** means this Scheme of Amalgamation in its present form or with any modifications, approved or imposed or directed by the Hon'ble National Company Law Tribunal and with all the Schedules appended thereto.

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(i) **"The Transferor Company"** means **Amoli Organics Private Limited,** a Private Limited Company incorporated under the Companies Act, 1956 and having its Registered Office at 322/4, 40, Shed Area, GIDC, Vapi - 396195. Gujarat.

(j) **"The Transferee Company"** means **Umedica Laboratories Private Limited.** a Private Limited Company incorporated under the Companies Act, 1956 and having its Registered Office at 222/1, 2nd Phase, GIDC Area, Vapi, 396191, Gujarat.

(k) **"The Undertaking"** shall mean and include the whole of the undertaking / business of the Transferor Company as a going concern, being carried on by the Transferor Company and shall include (without limitation):

(i) All the assets and properties, whether movable or immovable, real or personal, in possession or reversion, corporeal or incorporeal, tangible or intangible, present or contingent and including but not limited to land and building, all fixed and movable plant and machinery, vehicles, fixed assets, work in progress, current assets, investments, reserves, provisions, funds, licenses, registrations, membership of professional associations, other associations and clubs, certificates, permissions, consents, approvals from state, central, municipal or any other authority for the time being in force, concessions (including but not limited to income-tax, excise duty, service tax or customs, goods and service tax and other incentives of any nature whatsoever, remissions, remedies, subsidies, guarantees, bonds, copyrights, patents, trade names, trade-marks and other rights and licenses including any applications in respect thereof, tenancy rights, leasehold rights, premises, ownership flats, hire purchase, lending arrangements, benefits of security arrangements, security contracts, computers, insurance policies, office equipment, telephones, telexes, facsimile connections, communication facilities, equipment and installations and utilities, electricity, water and other service connections, contracts, deeds, instruments, agreements and arrangements, powers, authorities, permits, registrations / licenses etc. including pertaining to expatriates, allotments, privileges, liberties, advantages, easements and all the right, title, interest, goodwill, benefit and advantage, deposits, reserves, preliminary expenses, benefit of deferred revenue expenditure, provisions, advances, receivables, deposits, funds, cash, bank balances, accounts and all other rights, benefits of all agreements, subsidies, grants, incentives, tax credits (including but not limited to credits in respect of income-tax, minimum alternate tax i.e. tax on book profits, value added tax, sales tax, service tax, Goods and Service Tax etc.), tax benefits, tax losses, unabsorbed allowances, and other claims and powers, all books of accounts, documents and records of whatsoever nature and where so ever situated belonging to or in the possession of or granted in favour of or enjoyed by the Transferor Company as on the Appointed Date;

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(ii) All the debts, present and future liabilities, payables, contingent liabilities, duties and obligations (including duties/ rights/ obligations under any agreement, contracts, applications, letters of intent or any other contracts) as on the Appointed Date; and

(iii)All employees, if any, on the payrolls of the Transferor Company on the closing hours of the date immediately preceding the Effective Date.

It is intended that the definition of Undertaking under this Clause would enable the transfer of all property, assets, rights, duties, employees and liabilities of Transferor Company into the Transferee Company pursuant to this Scheme.

5. SHARE CAPITAL

(a) The Share Capital of Amoli Organics Private Limited - the Transferor Company as on the date of approval of Scheme by the Board of Directors is as under::

Authorised Capital	**Amount (INR)**
1,25,00,000 Equity Shares of INR 10/- each	12,50,00,000/-
Total	**12,50,00,000/-**
Issued, Subscribed and Paid-up Share capital	
51,11,980 Equity Shares of INR 10/- each	5.11.19.800/-
Total	**5,11,19,800/-**

(b) The Share Capital of Umedica Laboratories Private Limited - the Transferee Company as on the date of approval of Scheme by the Board of Directors is as under:

Authorised Capital	**Amount (INR)**
200,000 Equity Shares of INR 100 each	2,00,00,000
300,000 Preference Shares of INR 100 each	3,00,00,000
Total	**5,00,00,000/-**
Issued, Subscribed and Paid-up Share capital	
63,077 Equity Shares of INR100/- each	63,07,700
73,957 Preference Shares of INR 100/- each	73,95,700
Total	**1,37,03,400/-**

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6. TRANSFER OF UNDERTAKING

(a) With effect from the Appointed Date and subject to the provisions of this Scheme and pursuant to the provisions of Section 230 to 232 and other applicable provisions of the Companies Act, 2013 and Rules made thereunder and in relation to the mode of transfer and vesting, the Undertaking shall, without any further act, instrument or deed, be and the same shall stand transferred to and / or vested in or be deemed to have been and stand transferred to or vested in the Transferee Company as a going concern so as to become as and from the Appointed Date, the estate, rights, titles and interests and authorities including accretions, entitlements and appurtenances thereto such as dividends, or any other benefits receivable of the Transferee Company.

(b) With effect from the Appointed Date, and subject to the provisions of this Scheme, all the liabilities of the Undertaking shall stand transferred or deemed to have been transferred without any further act, instrument or deed of the Transferee Company, pursuant to the provisions of Section 230 to 232 and other applicable provisions of the Companies Act, 2013 and rules made thereunder, so as to become as and from the Appointed Date, the debts, liabilities, duties and obligations of the Transferee Company and further that it shall not be necessary to obtain consent of any third party or other person who is a party to the contract or arrangements by virtue of which such debts, liabilities, duties and obligations have arisen, in order to give effect to the provisions of this Clause.

(c) With effect from the Appointed Date, and subject to the provisions of this Scheme all the employees of the Undertaking shall stand transferred or deemed to have been transferred with all their accrued liabilities and with benefit of continuity of service period, without any further act, instrument or deed of the Transferee Company, pursuant to the provisions of Section 230 to 232 of the Act, so as to become as and from the Appointed Date, the employees of the Transferee Company and further that it shall not be necessary to obtain consent of any third party or other person, in order to give effect to the provisions of this Clause.

(d) Without prejudice to the other provisions of this Scheme and notwithstanding the fact that vesting of the Undertaking occurs by virtue of this Scheme itself, the Transferee Company may, at any time after coming into effect of this Scheme in accordance with the provisions hereof, if so required under any law or otherwise, take such actions and execute such deeds (including deeds of adherence), confirmations or other writings or tripartite arrangements with any party to any contract or arrangement to which the Transferor Company is a party or any writings as may be necessary in order to give formal effect to the provisions of this Scheme, the Transferee Company

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shall be deemed to be authorised to execute any such writings on behalf of the Transferor Company and to carry out or perform all such formalities or compliances referred to above on the part of the Transferor Company to be carried out or performed.

(e) For the avoidance of doubt and without prejudice to the generality of the foregoing, it is clarified that upon the coming into effect of this Scheme, all movable and immovable properties, consents, permissions, licenses, certificates, clearances, authorities, leases, tenancy, assignments, allotments, powers of attorney given by, issued to or executed in favour of the Transferor Company, claims, powers, authorities, allotments, approvals, consents, contracts, enactments, arrangements, rights, entitlements, titles, interests, benefits, advantages, lease-hold rights and tenancies, and other intangible rights, hire purchase contracts and assets, lending contracts, employment contracts, benefit of any security arrangements, reversions, permits, entitlements, registrations, licences (industrial or otherwise), registrations under sales tax / VAT/GST, municipal permissions, contracts and arrangements with the Central and State Governmental bodies including the local authorities, municipalities, etc. issued to or executed in favour of the Transferor Company in relation to the Undertaking shall stand transferred to the Transferee Company in which the Undertaking shall vest by way of the Amalgamation hereunder, as if the same were originally given by, issued to or executed in favour of Transferee Company, and Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to and stand vested with the Transferee Company. The Transferee Company shall make applications to and obtain relevant approvals from the concerned Government Authorities as may be necessary in this behalf and the same shall be granted to the Transferee Company by virtue of the Scheme without any payment of any differential premium, duty or transfer related cost thereof.

(f) Where any of the debts, liabilities, loans raised and used, liabilities and obligations incurred, duties and obligations of the Transferor Company as on the Appointed Date deemed to be transferred to the Transferee Company have been discharged by Transferor Company after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on account of the Transferee Company.

(g) All loans raised and used and all liabilities and obligations incurred by the Transferor Company for the operations of the Transferor Company after the Appointed Date and prior to the Effective Date, shall, subject to the terms of this Scheme, be deemed to have been raised, used or incurred for and on behalf of the Transferee Company in which the Undertaking shall vest in terms of this Scheme and to the extent they are outstanding on the Effective Date, shall also without any further act or deed be and stand transferred to and be deemed to be transferred to the Transferee Company and shall become the debts, liabilities, duties and obligations of the Transferee Company which shall meet discharge and satisfy the same.

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(h) Without prejudice to sub-clause (a) above, it is expressly provided that in respect of such assets belonging to the Undertaking as are movable in nature or are otherwise capable of transfer by manual delivery or by endorsement and delivery, the same shall be so transferred by the Transferor Company and shall become the property of the Transferee Company in pursuance of the provisions of Section 230 to 232 and other applicable provisions of the said Act.

(i) Without prejudice to sub-clause (a) above, in so far as the immovable properties of the Transferor Companies are concerned, upon the Scheme becoming effective, all the rights of the Transferor Companies in immovable properties shall stand transferred to the Transferee Company automatically without requirement of execution of any further documents or instrument for registering the name of the Transferee Company as owner thereof and the regulatory authorities, including Sub-registrar of Assurances, Talati, Tehsildar, Municipality, etc. shall make necessary mutation entries and changes in the land or revenue records to reflect the name of the Transferee Company as owner of the immovable properties.

(j) The Transferor Company may, if required, give notice in such form as it may deem fit and proper to each party, debtor or depositee as the case may be that pursuant to the concerned Governmental Authority sanctioning the Scheme, the said debt, loan, advance, etc. be paid or made good or held on account of the Transferee Company as the person entitled thereto and that the right of the Transferor Company to recover or realize the same stands extinguished.

(k) With effect from the Appointed Date till the Effective Date, the securities created, if any, over its assets (movable or immovable) by the Transferor Company in favour of any lenders, banks, financial institutions, housing or mortgage finance companies, Non-Banking Financial Companies (NBFCs), etc. shall continue as charge of any such lenders, banks, financial institutions, housing or mortgage finance companies, Non-Banking Financial Companies (NBFCs), etc. having securities over such assets (movable or immovable) transferred to the Transferee Company upon amalgamation and the assets so secured shall be clearly identifiable and/or distinguishable.

(m) With effect from the Appointed Date, the existing securities created over its assets (movable and immovable), by the Transferee Company in favour of any bank, financial institutions, Housing or mortgage finance companies, NBFCs, etc. shall continue as such security of any such bank , financial institutions, housing or mortgage finance companies, NBFCs, etc. over the respective assets (movable or immovable) of Transferee Company upon amalgamation and the assets so secured shall be clearly identifiable and/or distinguishable. However, if subsequent to the Scheme being placed before the authorities for approval, if no liabilities towards any bank or financial institutions continues, the securities over such assets of the Transferee Company, if any created will be released and such assets of the Transferee Company would be free from any charges, if any.

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(n) Without prejudice to the provisions of the foregoing clauses and upon the effectiveness of this Scheme, the Transferor Company and the Transferee Company shall execute any instruments or documents or do all the acts and deeds as may be required, including the filing of necessary particulars and / or modification(s) of charge, with the relevant regulatory authority and Governmental Authorities to give formal effect to the above provisions, if required. Further, where any document in case of any encumbrance, charge and/or right created by the Transferor Companies, is transferred to or replaced by the Transferee Company, no duty (including stamp duty), levy, expense, charge and/or cess of any nature will be payable by the Transferee Company at the time of replacement and/or modification of the encumbrance, charge and/or right with any Governmental authority (including Registrar of Companies) or any other person as the case maybe and the duty and other levies already paid by the Transferor Companies shall be deemed to have been paid by the Transferee Company.

(o) It is expressly provided that no other term or condition of the liabilities transferred to the Transferee Company is modified by virtue of this Scheme except to the extent that such amendment is required by necessary implication.

(p) Subject to the necessary consents being obtained in accordance with the terms of this Scheme, the provisions of this Clause 6 shall operate, notwithstanding anything to the contrary contained in any instrument, deed or writing or the terms of sanction or issue or any security document; all of which instruments, deeds or writings shall stand modified and / or superseded by the foregoing provisions.

(q) The transfer and/or vesting as aforesaid shall be subject to the existing charges, hypothecation and mortgages, if any, continuing over or in respect of all the aforesaid assets or any part thereof of the Transferor Company.

Provided however, that any reference of any security documents or arrangements, to which the Transferor Company is a party, over the assets of the Transferor Company which it has offered or agreed to be offered as security for any financial assistance or obligations, to the secured creditors of the Transferor Company, shall be construed as reference only to the assets pertaining to the assets of the Transferor Company as vested in the Transferee Company by virtue of the aforesaid clause, to the end and intent that such security, mortgage or charge shall not extend or be deemed to extend, to any of the assets or to any of the other units or divisions of the Transferee Company, unless specifically agreed to by the Transferee Company with such secured creditors and subject to the consents and approvals of the existing secured creditors of the Transferee Company.

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Provided always that the Scheme shall not operate to enlarge the security of any loan, deposit or facility created by or available to the Transferor Company which shall vest in the Transferee Company by virtue of the Scheme and the Transferee Company shall not be obliged to create any further or additional security therefore after the Scheme has become effective or otherwise.

(r) For the avoidance of doubt, it is clarified that upon the coming into effect of this Scheme, in accordance with the provisions of relevant laws, consents, permissions, licences, certificates, authorities (including for the operation of bank accounts), powers of attorney given by, issued to or executed in favour of Transferor Companies, and the rights and benefits under the same, and all quality certifications and approvals, trademarks, brands, patents and domain names, copyrights, industrial designs, trade secrets and other intellectual property and all other interests relating to the goods or services being dealt with by Transferor Companies shall, be transferred to and vested in Transferee Company.

(s) Upon the Scheme being effective, with effect from Appointed Date, in so far as the various incentives, tax exemption and benefits, subsidies, grants, special status and other benefits or privileges including in respect of income tax (including Minimum Alternative Tax), excise (including Modvat / Cenvat), customs, VAT, sales tax, service tax, goods and service tax ('GST') etc., granted by any Appropriate Authority, enjoyed or availed of by Transferor Companies are concerned, the same shall, without any further act or deed, stand transferred to and vest with and be available to Transferee Company on the same terms and conditions.

(t) Any amount including refund under the Tax Laws due to Transferor Companies consequent to the assessment proceedings or otherwise and which have not been received by the Transferor Companies as on the date immediately preceding the Appointed Date shall also belong to and be receivable by Transferee Company upon the Scheme being effective.

7. CONTRACTS, DEEDS AND OTHER INSTRUMENTS

(a) Subject to all the provisions of this Scheme, all contracts, deeds, bonds, agreements, arrangements and other instruments of whatsoever nature to which the Transferor Company is a party or to the benefits of which the Transferor Company may be eligible and which are subsisting or having effect immediately before the Effective Date, shall be in full force and effect against or in favour of the Transferee Company as the case may be and may be enforced as fully and effectively as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary thereto. The Transferee Company shall enter into and/or issue and/or execute deeds, writings or confirmations or enter into a tripartite arrangement, confirmation or novation to which the Transferor Company will, if necessary, also be a party in order to give formal effect to this Clause if so required or become necessary.

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(b) The resolutions, if any, of the Transferor Company which are valid and subsisting on the Effective Date, shall continue to be valid and subsisting and be considered as resolutions of the Transferee Company and if any such resolutions have upper monetary or other limits being imposed under the provisions of the Act, or any other applicable provisions, then said limits shall be added and shall constitute the aggregate of the said limits in the Transferee Company.

8. LEGAL PROCEEDINGS

(a) Upon coming into effect of this Scheme all suits, claims, actions and proceedings by or against the Transferor Company pending and/or arising on or before the Effective Date shall be continued and be enforced by or against the Transferee Company as effectually as if the same had been pending and/or arising by or against the Transferee Company.

(b) The Transferee Company will undertake to have all legal or other proceedings initiated by or against the Transferor Company referred to in sub-clause (a) above transferred to its name and to have the same continued, prosecuted and enforced by or against the Transferee Company.

9. TAXES, DUTIES, CESS, ETC.

(a) The Scheme is consistent with the provisions of Section 2(1B) of the Income Tax Act, 1961 whereby:

i) all the property of the Transferor Company immediately before the amalgamation becomes the property of the Transferee Company by virtue of the amalgamation;
ii) all the liabilities of the Transferor Company immediately before the amalgamation become the liabilities of the Transferee Company by virtue of the amalgamation;

(b) The provisions of the Scheme are to be read so far as circumstances permit to be consistent with the requirements of section 2(1B) of the Income Tax Act, 1961. If any term(s) or provision(s) of the Scheme is/are inconsistent with the provisions of Section 2(1B) of the Income Tax Act, 1961, the provisions of Section 2(1B) of the Income Tax Act, 1961 shall prevail and the Scheme shall stand modified to the extent necessary to comply with Section 2(1B) of the Income Tax Act, 1961. Such modifications will, however, not affect the other clauses of the Scheme.

(c) Upon occurrence of the Effective Date and with effect from the Appointed Date, all taxes (including taxes paid under protest or otherwise) of any nature, duties, cess or any other like payment or deductions made by Transferor Company to any statutory authorities such as income tax, advance tax, Tax Deducted at Source, tax paid under MAT provisions, sales tax, VAT, GST, service tax etc. or any tax deduction / collection at source, Modvat and/ or CENVAT Credit, relating to the period after the Appointed Date up to the Effective Date shall be deemed to have been on account of or paid by Transferee Company and the relevant

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authorities shall be bound to transfer to the account of and give credit for the same to Transferee Company upon the passing of the orders on this Scheme by the NCLT upon relevant proof and documents being provided to the said authorities.

(d) All the deduction otherwise admissible to Transferor Company including payment admissible on actual payment or on deduction of appropriate taxes or on payment of tax deducted at source (like section 43B, section 40, Section 40A etc. of the Income Tax Act 1961) will be eligible for deduction to Transferee Company upon fulfilment of required conditions under the Income Tax Act, 1961.

(e) Any MAT credit available to Transferor Company would get transferred to and be available to Transferee Company for being carried forward and set off against tax on future taxable income.

(f) Brought forward tax losses and unabsorbed depreciation of Transferor Company in terms of provisions of section 72A of the Income Tax Act, 1961 shall be allowable for set off against the profits of Transferee Company subject to the fulfilment of conditions prescribed therein.

(g) Transferee Company is expressly permitted to file/revise its financials, income tax, wealth tax, service tax, VAT, GST, Sales tax, Excise, CENVAT/MODVAT and other statutory returns, consequent to the Scheme becoming effective, notwithstanding that the period for filing/ revising such returns may have lapsed. Transferee Company is expressly permitted to amend TDS/TCS and other statutory certificates and shall have, the right to claim refunds including refund/ adjustment of taxes paid under protest or otherwise, advance tax credits, set offs and adjustments relating to their respective incomes / transactions from the Appointed Date. It is specifically declared that all the taxes (including taxes paid under MAT) /duties paid by Transferor Company shall be deemed to be the taxes (including taxes paid under MAT) / duties paid by Transferee Company and Transferee Company shall be entitled to claim credit for such taxes deducted (including taxes paid under MAT) / paid against its tax/ duty liabilities notwithstanding that the certificates/ challans or other documents for payment of such taxes (including taxes paid under MAT)/duties are in the name of Transferor Company.

(h) As and from the Effective Date, all the tax assessment, proceedings, appeals of whatsoever nature by or against the Transferor Company pending and or arising at the Appointed Date and relating to the Transferor Company, shall be continued, and enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued and enforced by or against the Transferor Company.

(i) Further, the proceedings shall not abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of the Transferor Company with the Transferee Company or anything contained in the Scheme.

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(j) Any tax liabilities under the Income Tax Act, 1961, service tax, GST laws, excise duty laws, Central sales tax, applicable state value added tax laws or other applicable laws, Regulations dealing with taxes, duties, levies of the Transferor Company to the extent not provided for or covered by tax provision in the accounts made as on the date immediately preceding the Appointed Date shall be transferred to the Transferee Company.

(k) Any refund, under the Income Tax Act, 1961, service tax laws, GST, excise duty laws, central sales tax, applicable state value added tax laws or other applicable laws, regulations dealing with taxes, duties, levies due to Transferor Company consequent to the assessment made on Transferor Company (including any refund for which no credit is taken in the accounts of the Transferor Company) as on the date immediately preceding the Appointed Date shall also belong to and be received by the Transferee Company upon this Scheme becoming effective.

(l) Upon the coming into effect of this scheme, all tax compliances under any tax laws by the Transferor Company on or after Appointed Date shall be deemed to be made by the Transferee Company.

10. RECONSTRUCTION OF ACCOUNTS

Upon coming into effect of this Scheme, the Transferee Company is expressly permitted to revise its financial statements as and from the respective Appointed Date, pursuant to the terms of this Scheme and necessary impact of the Scheme may be provided in such revised financial statements of the Transferee Company. The order of the NCLT sanctioning the Scheme shall be deemed to be order of the NCLT permitting the Transferee company to revise its financial statements and no further act shall be required to be undertaken by the Transferee Company for the same. Such revised financial statements of the Transferee Company, if prepared, shall form the basis for computation of income of the Transferee Company under the provisions of the Income-tax Act, 1961 including computation of Minimum Alternate Tax for the purpose of filing its return of income.

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11. OPERATIVE DATE OF THE SCHEME

This Scheme though effective from the Appointed Date shall be operative from the Effective Date.

12. CONDUCT OF BUSINESS BY THE TRANSFEROR COMPANY TILL EFFECTIVE DATE

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With effect from the Appointed Date, and up to the Effective Date:

(a) The Transferor Company shall carry on and shall be deemed to have carried on all their business and activities as hitherto and shall be deemed to have held and stand possessed of the Undertaking on account of, and for the benefit of and in trust for the Transferee Company.

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(b) All the profits or incomes accruing or arising to the Transferor Company or expenditure or losses arising or incurred (including the effect of taxes, if any, thereon) of the Transferor Company shall, for all purposes be treated and be deemed to be and accrued as the profits or incomes or expenditure or losses or taxes of the Transferee Company, as the case may be.

(c) The Transferor Company shall carry on its business and activities with reasonable diligence, business prudence and shall not, alienate, charge, mortgage, encumber or otherwise deal with the said assets or any part thereof except in the ordinary course of business or if the same is expressly permitted by this Scheme or pursuant to any pre-existing obligation undertaken by the Transferor Company prior to the Appointed Date, except with prior written consent of the Transferee Company.

(g) The Transferor Company and the Transferee Company shall co-operate with each other for smooth transfer of the Undertaking from the Transferor Company to the Transferee Company and any of the director of the Transferor Company and any director of the Transferee Company shall be empowered to give effect to the Scheme in all aspects as may be necessary or expedient including settling any question or difficulties arising in relation to the Scheme in such manner as they deem fit to attain the objectives of this Scheme and their decision in this regard shall be final and binding.

(h) It is hereby agreed and clarified that whenever under this Scheme, the approval of the Transferor Company is required to be obtained, it shall be the approval of any one of the Directors of the Transferor Company and whenever under this Scheme, the approval of the Transferee Company is required to be obtained, it shall be the approval of any one of the Directors of the Transferee Company.

13. CONSIDERATION BY THE TRANSFEREE COMPANY

(a) Upon the Scheme becoming finally effective, in consideration of the transfer of and vesting of the undertaking of the Transferor Company in the Transferee Company in terms of the Scheme, the Transferee Company shall, subject to the provisions of the Scheme and without any further application, act, or deed, issue and allot shares as per (i) or (ii) mentioned hereunder, at the option of the members of the Transferor Company:

(i) 4862 (Four Thousand Eight Hundred Sixty Two) Equity Shares of INR 100/- (Rupees Hundred only), credited as fully paid up in the capital of the Transferee Company, to the members of the Transferor Company, whose names appear in the register of members of the Transferor Company on the Record Date to be fixed by the Board of Directors of the Transferee Company for every 100,000 (One Lakh) Equity Shares of the face value of INR

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10/- (Rupees Ten only) each fully paid-up or credited as paid-up and held by the said members or their heirs, executors, administrators or their legal representatives as the case may be, in the Transferor Company

(ii) 4048 (Four Thousand and Forty Eight) Equity Shares of INR 100/- (Rupees Hundred only) and 826 (Eight Hundred Twenty Six) Optionally Convertible Redeemable Preference Shares (OCRPS) of INR 100/- (Rupees Hundred only), credited as fully paid up in the capital of the Transferee Company, to the members of the Transferor Company, whose names appear in the register of members of the Transferor Company on the Record Date to be fixed by the Board of Directors of the Transferee Company for every 100,000 (One Lakh) Equity Shares of the face value of INR 10/- (Rupees Ten only) each fully paid-up or credited as paid-up and held by the said members or their heirs, executors, administrators or their legal representatives as the case may be, in the Transferor Company.

Terms of issue of OCRPS, if opted by the Shareholders shall be as under:

- Face value – INR 100
- Conversion Term – 1 Equity Share to be issued for every 1 OCRPS
- Redemption Term – OCRPS to be redeemed at Issue Price + Redemption Premium to be determined by Board of Transferee Company based on market interest rate
- Tenure – 20 years

The shareholders of the Transferor Company shall be required to exercise their option in writing to receive shares as per (i) or (ii) mentioned above.

(b) In case any shareholder's holding in the Transferor Company is such that the shareholder becomes entitled to a fraction of equity shares or OCRPS, such fraction shall be rounded off to the next higher integer.

(c) In the event that the Transferee Company restructures its equity share capital by way of share split/consolidation/issue of bonus or right shares/ further issue of shares during the pendency of the Scheme, the Share Exchange Ratio as defined in sub-clause (a) of Clause 13 above, may be adjusted accordingly to take into account the effect of such corporate actions, as the case may be necessary.

(d) The said new equity Shares shall rank for voting rights and all other respects pari-passu with the existing equity Shares of the Transferee Company, save and except that the owners of such equity shares shall be entitled to dividend declared and paid by the Transferee Company only after the Record Date for the purpose of allotment of the Transferee Company's shares to the members of the Transferor Company pursuant to the approval of the Scheme.

(e) The issue and allotment of equity shares and / or OCRPS by the Transferee Company to the shareholders of the Transferor Company as provided in this Scheme is an integral part thereof

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and shall be deemed to have been carried out under the orders passed by the NCLT without requiring any further act or deed on the part of the Transferee Company as if the procedure laid down under the Act and such other Applicable Laws as may be applicable were duly complied with. It is clarified that the approval of the shareholders of the Transferee Company to this Scheme shall be deemed to be their consent / approval for the issue and allotment of equity shares and / or OCPRS to the shareholders of Transferor Company as provided in the Scheme as required under section 62 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

(f) Upon Scheme being effective, the Transferee Company shall, if necessary and to the extent required, increase its Authorized Share Capital to facilitate issue of equity shares and / or OCRPS under this Scheme. It is clarified that the approval of the shareholders of the Transferee Company to the Scheme shall be deemed to be their consent / approval also to the alteration of the Memorandum and Articles of Association of the Transferee Company as required under Section 13, 14, 61 and 64 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

(g) The Transferee Company will comply with the relevant and applicable rules and regulations including the provisions of the Foreign Exchange Management Act, 1999 to the extent applicable to enable the Transferee Company to issue and allot shares to the non-resident shareholders of the Transferor Company pursuant to clause 13.1 above.

14. ACCOUNTING TREATMENT

(a) Upon the Scheme becoming effective, the Transferee Company shall account for the amalgamation in its books as on the Appointed Date, as per the Accounting Standards as notified under Section 133 of the Companies Act, 2013 read with the Companies (Indian Accounting Standards) Rules, 2015, as amended from time to time.

(b) If considered appropriate for the purpose of application of uniform accounting methods and policies between the Transferor Company and the Transferee Company, the Transferee Company may make suitable adjustments in compliance with the applicable Accounting Standards as notified under Section 133 of the Companies Act, 2013 read with the Companies (Indian Accounting Standards) Rules, 2015, as amended from time to time.

(c) To comply with the relevant laws, the Income-tax Act, 1961 and applicable Accounting Standards, the Board of Directors of the Transferee Company may alter or modify the provisions of this Clause 14, as they may deem fit and consider necessary, to settle any question arising out of the Scheme.

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15. CANCELLATION OF SHARE CAPITAL

(a) Upon the Scheme coming into effect, the existing shareholding of the Transferor Company in the Transferee Company, if any, shall stand cancelled without any further act, instrument or deed.

(b) The consequent reduction of share capital of the Transferee Company shall be an integral part of this Scheme and the Companies shall not be required to follow the process under section 66 and other applicable provisions of the Act separately.

(c) The reduction would not involve either a diminution of liability in respect of unpaid share capital, if any or payment to any shareholder of any unpaid share capital.

16. BORROWING LIMITS; CORPORATE APPROVALS

(d) Upon the coming into effect of this Scheme and with effect from the Appointed Date, the borrowing and investment limits of the Transferee Company under the Act shall be deemed without any further act or deed to have been enhanced by the borrowing and investment limits of the Transferor Company, such limits being incremental to the existing limits of the Transferee Company.

(e) Any corporate approvals obtained by the Transferor Company, whether for purposes of compliance or otherwise, shall stand transferred to the Transferee Company and such corporate approvals and compliance shall be deemed to have been obtained and complied with by the Transferee Company.

(f) The resolutions of the Transferor Company, which are valid and subsisting and be considered as resolutions of the Transferee Company and if any such resolutions have upper monetary or other limits being imposed under the provisions of the Act, or any other applicable provisions, then said limits shall be valid and shall continue for the Transferee Company.

17. TRANSFEROR COMPANY'S EMPLOYEES

Upon the Scheme coming into effect, all employees of the Transferor Company, shall become employees of the Transferee Company on such date as if they were in continuous service without any break or interruption in service and on the terms and conditions as to remuneration not less favourable than those subsisting with reference to the Transferor Company as on the said date.

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It is provided that so far as the Provident Fund, Gratuity Fund, or any other Special Scheme(s)/Fund(s), if any, created or existing for the benefit of the employees of the Transferor Company are concerned, upon the coming into effect of this Scheme, the Transferee Company shall stand substituted for the Transferor Company for all purposes whatsoever related to the administration or operation of such Schemes or Funds or in relation to the obligation to make contributions to the said Schemes/Funds in accordance with provisions of such Schemes/Funds as per the terms provided in the respective Trust Deeds, to the end and intent that all the rights, duties, powers and obligations of the Transferor Company in relation to such Schemes/Funds shall become those of the Transferee Company. It is clarified that the services of the employees of the Transferor Company will be treated as having been continuous for the purpose of the aforesaid Schemes/Funds.

18. CONSOLIDATION OF AUTHORISED CAPITAL

a) Upon this Scheme becoming effective, the authorised share capital of the Transferor Company amounting to INR 12,50,00,000/- (Rupees Twelve Crore Fifty Lakh Only), as mentioned in Clause 5 above, shall be added to the authorised share capital of the Transferee Company, as on the Effective Date, without any further act or deed and without any further payment of any stamp duty or registration fees. Further, such authorised share capital of the Transferor Company comprising of 1,25,00,000 equity shares of INR 10 each shall stand reclassified into 12,50,000 equity shares of INR 100 each while being added to the authorised share capital of the Transferee Company. For this purpose, the stamp duty and fees already paid on the authorised share capital of the Transferor Company shall be utilised and applied to the increased authorised share capital of the Transferee Company and there would be no requirement for any other further payment of stamp duty and / or fee by the Transferee Company for increase in the authorised share capital to that extent. The authorised share capital of the Transferee Company will thus be increased to that effect by virtue of the Scheme becoming effective and no separate procedure shall be required to be followed under the Act. Consequently, Clause V of the Memorandum of Association of the Transferee Company shall, without any act, instrument or deed, be and stand altered, modified and amended as under:

"The Authorised Share Capital of the Company is Rs.17,50,00,000 (Rupees Seventeen Crores Fifty Lakhs Only) divided into 14,50,000 (Fourteen Lakh Fifty Thousand) Equity Shares of Rs. 100/- (Rupees Hundred) each and 3,00,000 (Three Lakhs) Preference Shares of Rs. 100/- (Rupees Hundred) each with the rights, privileges and conditions attached thereto as are provided by the Articles of Association of the Company for the time being to several classes and to attach thereto respectively, such preferential, deferred, qualified, special rights, privileges or conditions as may be determined by or in accordance with the Articles of Association of the Company for the time being and to vary, modify or abrogate any such rights, privileges or conditions in such manner as may be permitted by the Act or provided by the Articles of Association for the time being."

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Further, the Transferee Company shall, if necessary and to the extent required, increase its Authorized Share Capital, to facilitate issue of equity shares and / or OCRPS under this Scheme, by following the requisite procedure and on payment of applicable requisite fees and duties and the resolution approving the Scheme shall be deemed to be the approval for increase in the authorized share capital of the Transferee Company.

b) It is clarified that the approval of the shareholders of the Transferee Company to the Scheme shall be deemed to be their consent / approval also to the consequential alteration of the Memorandum and Articles of Association of the Transferee Company as may be required under the Act and the Transferee Company shall not be required to seek separate consent / approval of its shareholders for such alteration of the Memorandum and Articles of Association of the Transferee Company.

19. DISSOLUTION OF THE COMPANY

The Transferor Company shall be dissolved without winding up on an order made by the NCLT under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

20. APPLICATION TO THE NCLT AND GOVERNMENTAL AUTHORITY

The Transferor Company shall make all applications/petitions under Sections 230 to 232 and other applicable provisions of the Act to the NCLT for sanctioning of this Scheme and for dissolution of Transferor Company without winding up under the provisions of Act and obtain all approvals as may be required under law.

The Transferee Company shall also with reasonable dispatch make all applications/petitions under Sections 230 to 232 and other applicable provisions of the Act to the NCLT and the Governmental Authority, as applicable, for sanctioning of this Scheme under the provisions of Act and obtain all approvals as may be required under law.

21. MODIFICATIONS, AMENDMENTS TO THE SCHEME

The Transferor Company (by its Directors) and Transferee Company (by its Directors) may assent from time to time on behalf of all persons concerned to any modifications or amendments or addition to this Scheme or to any conditions or limitations which the Hon'ble NCLT, or such other Governmental Authority or any authorities under the Law may deem fit to approve of or impose and/or to resolve any doubt or difficulties that may arise for carrying out this Scheme and to do and execute all such acts, deeds, matters and things as may be necessary, desirable or proper for carrying the Scheme into effect, subject to approval of NCLT.

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For the purpose of giving effect of this Scheme or to any modifications or amendments. thereof. the Directors of the Transferor Company and Transferee Company may give and are authorised to give all such directions that are necessary or are desirable including directions for settling any doubts or difficulties that may arise.

22. SCHEME CONDITIONAL UPON APPROVALS/SANCTIONS

This Scheme is specifically conditional upon and subject to:

(a) The approval of the requisite majorities of such members and/or creditors of the Transferor Company and the Transferee Company as may be directed by the NCLT or other concerned Governmental Authorities in India on the applications made for directions under Section 230 to 232 of the Act.

(b) The sanction of the NCLT being obtained under Sections 230 to 232 and other applicable provisions of the Act for the Transferor Company and Transferee Company.

(c) Filing certified copies of the orders of the NCLT sanctioning the Scheme with the Registrar of Companies having jurisdiction over the Transferor Company and the Transferee Company.

23. EFFECT OF NON-RECEIPT OF APPROVAL/SANCTION

The Scheme shall not come into effect unless the aforementioned conditions mentioned in Clause 22 above are satisfied and in such an event, the Scheme shall become null and void. Unless each of the conditions are satisfied, no rights and liabilities whatsoever shall accrue to or be incurred inter se the Companies or their respective shareholders or creditors or employees or any other person.

24. EXPENSES CONNECTED WITH THE SCHEME

All costs, charges and expenses, including any taxes and duties of the Transferor Company and the Transferee Company respectively in relation to or in connection with this Scheme and incidental to the completion of the amalgamation of the Transferor Company in pursuance of this Scheme shall be borne by the Transferee Company only.

FOR UMEDICA LABORATORIES PVT LTD.

AUTHORISED SIGNATORY

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Authorised Signatory

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Authorised Signatory

For AMOLI ORGANICS PVT. LTD

Authorised Signatory

Annexure H

KALYANIWALLA
& MISTRY LLP
CHARTERED ACCOUNTANTS

To,
The Board of Directors,
Amoli Organics Private Limited
407, Jamnalal Bajaj Road,
Dalamal House,
Nariman Point
Mumbai- 400021

Independent Auditor's Certificate on the proposed accounting treatment contained in the Proposed Scheme of Amalgamation of Amoli Organics Private Limited into Umedica Laboratories Private Limited

1. We have been requested by Amoli Organics Private Limited ("the Company") vide Email dated October 14, 2022 , having its registered office at the above mentioned address to certify that the proposed accounting treatment contained in clause 14 of the Proposed Scheme of Amalgamation amongst the Company and Umedica Laboratories Private Limited and their respective Shareholders and Creditors ("the Proposed Scheme") in terms of the provisions of section 230 to 232 of the Companies Act, 2013 (" the Act") is in compliance with the applicable Accounting Standards specified under Section 133 of the Companies Act, 2013, read with Companies (Indian Accounting Standards) Rules, 2015, as amended and Other Generally Accepted Accounting Principles for the purpose of onward submission to National Company Law Tribunal, Mumbai ("the Tribunal"). Accordingly, this certificate is issued in accordance with the terms of our engagement letter dated November 25, 2022.

Management's Responsibility

2. The Company's Board of Directors is responsible for the matters stated in Section 134(5) of the Act with respect to the preparation of the Financial Statements that give a true and fair view of the financial position, financial performance, and cash flows of the Company in accordance with the accounting principles generally accepted in India, including the Accounting Standards specified under section 133 of the Act read with Companies (Indian Accounting Standards) Rules, 2015, as amended.

3. The responsibility for the preparation of the Proposed Scheme and ensuring its compliance with the relevant laws and regulations, including the applicable Accounting Standards read with Companies (Indian Accounting Standards) Rules, 2015, as amended, is that of the Board of Directors of the Companies involved. This responsibility includes the design, implementation and maintenance of internal control relevant to the preparation and presentation of the Proposed Scheme and applying an appropriate basis of preparation and making estimates that are reasonable in the circumstances.

For AMOLI ORGANICS PVT. LTD.

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4. The Management is also responsible for ensuring that the Company complies with the requirements of sections 230-232 of the Companies Act, 2013 and provides all relevant information to the Tribunal and to any other regulatory authorities in connection with the Proposed Scheme.

Auditor's Responsibility

5. Pursuant to the requirements of section 230 to section 232 of the Companies Act, 2013, it is our responsibility to provide a reasonable assurance whether the Proposed Scheme is in compliance with the Accounting Standards specified under Section 133 of the Companies Act, 2013 read with Companies (Indian Accounting Standards) Rules, 2015, as amended and Other Generally Accepted Accounting Principles.

6. We have examined the proposed accounting treatment specified in clause 14 of the Proposed Scheme of the Company in terms of the provisions of sections 230-232 of the Companies Act, 2013 with reference to its compliance with the applicable Accounting Standards notified under section 133 of the Companies Act, 2013 read with Companies (Indian Accounting Standards) Rules, 2015 and Other Generally Accepted Accounting Principles, to the extent applicable to the Company.

7. We conducted our examination in accordance with the Guidance Note on Reports or Certificates for Special Purposes issued by the ICAI (Revised 2016). The Guidance Note requires that we comply with the ethical requirements of the Code of Ethics issued by the ICAI.

8. We have complied with the relevant applicable requirements of the Standard on Quality Control (SQC) 1, Quality Control for Firms that Perform Audits and Reviews of Historical Financial Information, and Other Assurance and Related Services Engagements issued by ICAI.

Opinion

9. Based on our examination, as above, and the information and explanations given to us, we are of the opinion that the proposed accounting treatment specified in clause 14 of the Proposed Scheme, to the extent applicable to the Company and as on the effective date of the Proposed Scheme, is in compliance and applicable Accounting Standards notified under section 133 of the Companies Act, 2013 read with Companies (Indian Accounting Standards) Rules, 2015 and Other Generally Accepted Accounting Principles, as applicable.

   For ease of reference, the relevant extract pertaining to Accounting Treatment stated in Paragraph 14 of the Proposed Scheme, duly authenticated on behalf of the Company is reproduced in Annexure 1 to this certificate and is initialled by us only for the purposes of identification.

Amoli Organics Pvt. Ltd.

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Restriction on Use

10. Our work was performed solely to assist you in meeting your responsibilities in relation to your compliance with the requirements of the provisions of the Sections 230 to 232 and other applicable provisions of the Act read with the Rules, for onward submission along with the Scheme to the Tribunal. Our obligations in respect of this Certificate are entirely separate from, and our responsibility and liability is in no way changed by, any other role we may have as statutory auditors of the Company or otherwise. Nothing in this certificate, nor anything said or done in the course of or in connection with the services that are the subject of this certificate, will extend any duty of care we may have in our capacity as statutory auditors of the Company.

11. The certificate is issued solely pursuant to as per requirements of proviso to Section 232(3) for onward filing with the Tribunal. This certificate should not be used or referred to by any other person or for any other purpose. Accordingly, Kalyaniwalla & Mistry LLP do not accept or assume any liability or any duty of care for any other purpose or to any other person to whom this certificate is shown or into whose hands it may come without our prior consent in writing and also not liable to any other concerned for any claims, liabilities or expenses relating to this assignment. We have no responsibility to update this Certificate for any events or circumstances occurring after the date of this Certificate.

For KALYANIWALLA & MISTRY LLP
CHARTERED ACCOUNTANTS
Firm Registration No. 104607W / W100166
Damarla Sai Venkata Ramana
Sai Venkata Ramana Damarla
Partner
Membership. No. 107017
UDIN: 22107017BEIBJZ9809
Place: Mumbai
Date: November 28, 2022

Amoli Organics Pvt. Ltd.

Amoli Organics Pvt. Ltd.
Corporate Office: 407, Dalamal House, Jamnalal Bajaj Road, Nariman Point, Mumbai - 400 021. INDIA.
☎ : 91-22-6621 4715 / 2285 4715 ⊕ : www.amoliindia.com

28th November, 2022

Annexure -1

Extract of Scheme of Amalgamation between Amoli Organics Private Limited and Umedica Laboratories Private Limited.

Clause – 14 .

(a) Upon the Scheme becoming effective, the Transferee Company shall account for the amalgamation in its books as on the Appointed Date, as per the Accounting Standards as notified under Section 133 of the Companies Act, 2013 read with the Companies (Indian Accounting Standards) Rules, 2015, as amended from time to time.

(b) If considered appropriate for the purpose of application of uniform accounting methods and policies between the Transferor Company and the Transferee Company, the Transferee Company may make suitable adjustments in compliance with the applicable Accounting Standards as notified under Section 133 of the Companies Act, 2013 read with the Companies (Indian Accounting Standards) Rules, 2015, as amended from time to time.

(c) To comply with the relevant laws, the Income-tax Act, 1961 and applicable Accounting Standards, the Board of Directors of the Transferee Company may alter or modify the provisions of this Clause 14, as they may deem fit and consider necessary, to settle any question arising out of the Scheme.

For Amoli Organics Private Limited

Manish Doshi
Director

For AMOLI ORGANICS PVT. LTD.

Authorised Signatory

Annexure "B"

Amoli Organics Pvt. Ltd.

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List of Assets forming part of Transferor Company ('Amoli Organics Private Limited) as on 01st April 2022 to be transferred to the Transferee Company (Umedica Laboratories Private Limited) pursuant to the scheme of arrangement.

Schedule

Name of Transferor Company	Amoli Organics Private Limited
Corporate Identification Number (CIN)	U24231GJ1991PTC016288
Registered Office	Plot No. A2-322/3-B Shed,322/4 at Village Chanod, 40 Shed Area, GIDC, Taluka Pardi, District Valsad, PIN -396 195, State - Gujarat, Country – India
PAN	AACCA3990Q
TAN	SRTA01797F
GST Registration Number-Mumbai	24AACCA3990Q2Z1 24AACCA3990Q1Z2
GST Registration Number-Vapi	24AACCA3990Q1Z8
PF Registration Number-Vadodara	VDBRD0021691000
PF Registration Number- Vapi	SRVAP0024188000
ESIC Registration Number-Vadodara	38000461960000305
ESIC Registration Number-Vapi	39000182900000304
ESIC Registration Number-Mumbai	31370182900010304

Part I

Particulars of Freehold Properties

(i) Land: Industrial Land and Building on Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country - India

Sr. No	Survey Number / Plot No	Area in Square Feet	Description
1	Survey No 350/1/Plot No 421	33281.98	Industrial Land and Building on Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country - India
2	Survey No 350/351/353/ Plot No 422	158713.70	Industrial Land and Building on Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country - India
3	Survey No 354/Plot No 423	30720.17	Industrial Land and Building on Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project

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			Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country - India
4	Survey No 350/351/353/ Plot No 424	38405.60	Industrial Land and Building on Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country - India
5	Survey No 353/Plot No 425	38394.83	Industrial Land and Building on Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country - India
6	Survey No 365/2 /Plot No 432	78081.33	Industrial Land and Building on Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country - India
7	Survey No 365/Plot No 433	64002.15	Industrial Land and Building on Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country - India
8	Survey No 367/Plot No 436	57597.63	Industrial Land and Building on Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country - India

(ii) Building:

Sr. No	Survey Number / Plot No	Build up Area in Square Feet	Description
1	Plot No. 421 to 425, 432, 433 & 436	335651	Industrial Land and Building on Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country - India

(iii) Movable Assets:

Sr. No.	Nature of Property	City	Location address
1	Plant & Machinery	Vadodara	Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country – India
		Valsad	Plot No. A2-322/3-B Shed,322/4 at Village Chanod, 40 Shed Area, GIDC, Taluka Pardi, District Valsad, PIN -396 195, State - Gujarat, Country - India
2	Furniture	Vadodara	Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country – India
		Valsad	Plot No. A2-322/3-B Shed,322/4 at Village Chanod, 40 Shed Area, GIDC, Taluka Pardi, District Valsad, PIN -396 195, State - Gujarat, Country – India
		Mumbai	407, Dalamal House, Jamnalal Bajaj Road, Narimanpoint, Mumbai-400021-India
3	Computers	Vadodara	Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country – India

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		Valsad	Plot No. A2-322/3-B Shed,322/4 at Village Chanod, 40 Shed Area, GIDC, Taluka Pardi, District Valsad, PIN -396 195, State - Gujarat, Country – India
		Mumbai	407, Dalamal House, Jamnalal Bajaj Road, Narimanpoint, Mumbai-400021-India
4	Electric Installations	Vadodara	Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country – India
		Valsad	Plot No. A2-322/3-B Shed,322/4 at Village Chanod, 40 Shed Area, GIDC, Taluka Pardi, District Valsad, PIN -396 195, State - Gujarat, Country – India
5	Laboratory Equipment	Vadodara	Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country – India
		Valsad	Plot No. A2-322/3-B Shed,322/4 at Village Chanod, 40 Shed Area, GIDC, Taluka Pardi, District Valsad, PIN -396 195, State - Gujarat, Country – India
		Mumbai	407, Dalamal House, Jamnalal Bajaj Road, Narimanpoint, Mumbai-400021-India
6	Office Equipment	Vadodara	Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country – India
		Valsad	Plot No. A2-322/3-B Shed,322/4 at Village Chanod, 40 Shed Area, GIDC, Taluka Pardi, District Valsad, PIN -396 195, State - Gujarat, Country – India
		Mumbai	407, Dalamal House, Jamnalal Bajaj Road, Narimanpoint, Mumbai-400021-India
7	Software	Vadodara	Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN -

			391 440, State - Gujarat, Country – India
		Valsad	Plot No. A2-322/3-B Shed,322/4 at Village Chanod, 40 Shed Area, GIDC, Taluka Pardi, District Valsad, PIN -396 195, State - Gujarat, Country – India
		Mumbai	407, Dalamal House, Jamnalal Bajaj Road, Narimanpoint, Mumbai-400021-India
8	Vehicle	Vadodara	Plot No. 421 to 425, 432, 433 & 436, Effluent Canal Project Road, Village-Luna, Taluka - Padra, District- Vadodara, PIN - 391 440, State - Gujarat, Country – India
		Valsad	Plot No. A2-322/3-B Shed,322/4 at Village Chanod, 40 Shed Area, GIDC, Taluka Pardi, District Valsad, PIN -396 195, State - Gujarat, Country - India
		Mumbai	407, Dalamal House, Jamnalal Bajaj Road, Narimanpoint, Mumbai-400021-India

Part II

Particulars of Leasehold Properties

(i) Land: Industrial Land and Building on Plot No. A2-322/3-B Shed,321/4, 322/4 & Plot No 25 at Village Chanod, 40 Shed Area, GIDC, Taluka Pardi, District Valsad, PIN -396 195, State - Gujarat, Country - India.

(ii) Building: Nil

(iii) Plant and machinery: Nil

Part III

A. Particulars of Investment in Shares & Securities:

No. of shares and description

No. of shares and description	Face Value
Enviro Infrastructure Company Ltd – 1,00,000 shares	10

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SBEC Sugar Ltd – 5000 shares	10

B. Particulars of Bank Accounts:

Sr. No.	Bank & Branch	Type of Account	Account No.
1	State bank of India,IFB branch, BKC-Bandra-Mumbai	CC	00000010271668167
2	DBS Bank LTD-Nariman point, Mumbai	CC	811210097787
3	ICICI Bank LTD, Backbay branch, Narimanpoint Mumbai	CC	000451000407
4	HDFC Bank LTD, Tulsiani chambers, Narimanpoint Mumbai	CC	00010330002613
5	State bank of India, Air –Cargo-Andheri-Mumbai	Current Account	00000011147699544
6	State bank of India, Nava Sheva-Mumbai	Current Account	00000010072904815
7	IDBI Narimanpoint –Mumbai	Current Account	0004102000040938
8	UCO Fort Mumbai	Current Account	00030210021385

C. Vehicles:

Particulars	Registration number of vehicle	Name of Vehicle
Motor Vehicle	GJ06FQ6987	Mahindra Xylo H4 Bs4
Motor Vehicle	GJ06FQ9155	Toyota Etios Vd (M) 1364
Motor Vehicle	GJ15CD5961	Maruti Swift Desire Vdi - Sedan
Motor Vehicle	GJ15CD7448	Maruti Ciaz – Vxi+
Motor Vehicle	GJ15AT0656	Facelift Ht 275 Di
Motor Vehicle	MH43AW1241	Toyota Altis
Motor Vehicle	GJ06KD1815	Indigo Ecs LS TDI BS 3
Truck	GJ06AX2273	Tata SFC709EX BSIII/38 HDLB Truck
Motor Vehicle	MH43BE5290	Mercedes Benz
Motor Vehicle	GJ15CG8156	Etios Liva VXD – Toyota Kiloskar Ltd
Motor Vehicle	GJ15CG8103	Etios Liva VXD – Toyota Kiloskar Ltd
Motor Vehicle	MH01CT9402	Honda City
Ambulance	GJ06AV9095	Maruti Eeco Ambulance BS-IV
Motor Vehicle	GJ06FK4486	Etios VD - Sedan
Fork Lift	GJ 06 JF 2114	AF30D (Forklift)
Motor Vehicle	GJ 06 PL 3815	Brezza Smart Hybrid VXI
Motor Vehicle	MH01EF4490	MG Hector

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D. License / Certificates

Sr No	Certificate No.	Date	Description	Period Validity
FDA Lisence	23023942	From 2003	Food & Drugs control Administration Gujarat	Up to2026
Licence to Manufacture for sale of Drugs	G/25/1121	From 2020	Food & Drugs control Administration Gujarat	Up to 2025
GPCB	CCA-AWH No-115634 Amended No 123889	From 2021	GPCB	Up to 2026
Licence to Work a Factory	11681	From 2019	Director Industrial Safety & Health, Gujarat	Up to 2024
Licence to import and store petroleum in an installation	P/HQ/GJ/15/1218(P10759)	From 2011	PESO	Up to 2029
Clearance from Ministry of Environment, Forest and Climate Change	SEIAA/GUJ/EC/5(F)/145/2019	From 2019	Ministry of Environment, Forest and Climate Change	Up to 2026
Land user Certificate	GIDC:DY.M:VPI:TRF:PLT:6077	From 1992	Gujarat Industrial development Corporation	NA
Drugs Standard Control	WC-0134	From 2022	Ministry of Health & Family Welfare	Up to 2025
ISO 14001 2015 Certificate	20098-E15-001 20098-OHS-001	From 2022	Alcumus ISOQAR Limited	Up to 2024
Boiler Registration	GT-10546	From 2022	GUJARAT BOILER INSPECTION DEPARTMENT	Up To 2023
Product Linked Incentive Scheme for	VCO& GPV/03122021/PLI/12682	From 2021	Department of Pharmaceuticals	Up to 2028

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Pharmaceuticals				
Product Linked Incentive Scheme for Pharmaceuticals	VCO& GPV/03122021/PLI/12682	From 2021	Department of Pharmaceuticals	Up to 2029
Production Linked Incentive Scheme for Bulk Drugs	IFCI/CASD/DOP/PLI- 210415012	From 2021	Department of Pharmaceuticals	Up to 2030

For and on behalf of
Amoli Organics Private Limited.

Manish Doshi
Director.
DIN: 00210389